



**MINUTES
MEETING OF THE SUNRISE CITY COMMISSION**

**Tuesday, March 24, 2020
5:00 p.m.**

1. Call to Order

Mayor Ryan called the meeting to order at 5:06 p.m.

2. Roll Call

BY: City Clerk Felicia Bravo

Those found to be present were:

Mayor Michael Ryan
Deputy Mayor Joseph Scuotto
Assistant Deputy Mayor Neil Kerch
Commissioner Lawrence Sofield
Commissioner Mark Douglas

City Manager Richard Salamon
Assistant City Manager Mark Lubelski
City Attorney Kimberly Kisslan
Assistant City Attorney Tom Moss
Community Development Director Shannon Ley la
Administrative Aide Lourdes Lawrence
City Clerk Felicia Bravo

3. Moment of Silence and Pledge of Allegiance

4. Consent Agenda

MOTION A motion to approve Items 4A through 4H made by Deputy Mayor Scuotto was seconded by Commissioner Sofield.

Roll Call:

Commissioner Douglas	Yea
Commissioner Sofield	Yea
Assistant Deputy Mayor Kerch	Yea
Deputy Mayor Scuotto	Yea
Mayor Ryan	Yea

(A) Agreement

C20054 Resolution No. 20-30

A Resolution of the City of Sunrise, Florida, approving an "Interagency Information Sharing Agreement for Vendor Personnel Security Screening Requirements" between the City of Sunrise and the Broward County Sheriff's Office; and providing an effective date. City Manager Richard Salamon. Anthony W. Rosa, Police Chief.

(B) Equipment

C20060 Resolution No. 20-31

A Resolution of the City of Sunrise, Florida, approving the Purchase of One (1) Two (2) Camera Automatic License Plate Recognition (ALPR) Speed Trailer from Vetted Security Solutions LLC, of St. Petersburg, Florida as the Sole Source Provider; and providing an effective date. City Manager Richard Salamon. Anthony W. Rosa, Police Chief.

(C) Amendment

C20055 Resolution No. 95-243-20-A

A Resolution of the City of Sunrise, Florida, providing for a Revision to Ordinance No. 715-X, as Amended, to the General Executive/Management Position Schedule, and the Pay Plan Appendix; and providing for an effective date. City Manager Richard Salamon. Stella Mesa, Human Resources Director.

(D) Amendment

C20056 Resolution No. 20-17-20-A

A Resolution of the City of Sunrise, Florida, amending the Personnel Summary for the 2019/2020 Fiscal Year Budget; and providing an effective date. City Manager Richard Salamon. Wendy Dunbar, Finance and Administrative Services Director.

(E) Agreement
C20021 Resolution No. 20-32

A Resolution of the City of Sunrise, Florida, approving the purchase of Security Officer Services from Universal Protection Service, LLC, under the terms of the State of Florida Contract No. 92121500-14-01 and approving a "Service Level Agreement for City of Sunrise, Florida by Universal Protection Service, LLC d/b/a Allied Universal Security Services, LLC" and an "Addendum to Service Level Agreement for City of Sunrise, Florida (Agreement) under State Term Contract No. 92121500-14-01 Security Officer Services, Armed and Unarmed;" and providing an effective date. City Manager Richard Salamon. Timothy Welch, Utilities Director.

(F) Agreement
C20057 Resolution No. 20-33

A Resolution of the City of Sunrise, Florida, to Award Bid No. 20-10-12-LZ for Spraying of Flexi-Pave at Shotgun Road Linear Park to K.B. Industries, Inc.; and providing an effective date. City Manager Richard Salamon. Rosemarie Marco, Leisure Services Director.

(G) Agreement
C20042 Resolution No. 15-61-20-A

A Resolution of the City of Sunrise, Florida, approving a "Standard Project Agreement No. 20-007-KH between the City of Sunrise and Kimley-Horn and Associates, Inc." for the City Bus Shelter Project; and providing an effective date. City Manager Richard Salamon. Timothy Welch, Utilities Director.

(H) Minutes

Approval of Minutes:

1/14/20 CCM
1/14/20 LPA
1/28/20 CCM
1/28/20 Executive Session
2/11/20 CCM
2/11/20 LPA
2/25/20 CCM

5. Special Items

None

6. City Items

(A) Annual Report
M20000

A Motion accepting the City's Comprehensive Annual Financial Report for the year ended September 30, 2019. City Manager Richard Salamon. Wendy Dunbar, Finance and Administrative Services Director.

MOTION A motion to approve Item 6A made by Deputy Mayor Scuotto was seconded by Commissioner Sofield.

Roll Call:

Commissioner Douglas	Yea
Commissioner Sofield	Yea
Assistant Deputy Mayor Kerch	Yea
Deputy Mayor Scuotto	Yea
Mayor Ryan	Yea

(B) Appointment
M20001

A motion appointing a City Commissioner to serve on the Metropolitan Planning Organization (MPO) board. Commissioner Larry Sofield.

MOTION A motion to hear Item 6A made by Deputy Mayor Scuotto was seconded by Commissioner Sofield.

MOTION A motion to appoint Deputy Mayor Scuotto to serve on the MPO made by Assistant Deputy Mayor Kerch was seconded by Commissioner Sofield.

Roll Call:

Commissioner Douglas	Yea
Commissioner Sofield	Yea
Assistant Deputy Mayor Kerch	Yea
Deputy Mayor Scuotto	Yea
Mayor Ryan	Yea

7. Open Discussion

None

8. Commission/Mayor Reports

MOTION A motion to suspend Commission/Mayor Reports made by Assistant Deputy Mayor Kerch was seconded by Commissioner Sofield. All were in favor.

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Assistant Deputy Mayor Kerch thanked Police Chief Anthony Rosa for putting out signage. He asked the arena to use the signs for public purpose information.

Deputy Mayor Scuotto stated Plantation designated one specific truck for COVID-19 transport. He hoped that Sunrise would contemplate that as well.

9. City Manager's Report

None

10. Consent Discussion

None

11. Quasi-Judicial Consent Agenda

MOTION A motion to approve Item 11A through 11B made by Commissioner Sofield was seconded by Deputy Mayor Scuotto.

Applicants for Items 11A and 11B waived their rights. Community Development Director Shannon Ley stated there were no affected parties.

Roll Call:

Commissioner Douglas	Yea
Commissioner Sofield	Yea
Assistant Deputy Mayor Kerch	Yea
Deputy Mayor Scuotto	Yea
Mayor Ryan	Yea

(A) IBB Building Expansion
C19335 Resolution No. 92-24-20-A

Revised Site Plan - Planning and Zoning March 5, 2020 Passed 7-0

A Resolution of the City of Sunrise, Florida, approving a Revised Site Plan for an Office/Warehouse use located at 14051 NW 14th Street; providing for penalties for violations of the conditions of approval; providing for the term of this approval; and providing an effective date. City Manager Richard Salamon. Shannon Ley, Community Development Director.

(B) JAFCO Respite Center
C20043 Resolution No. 10-20-20-A

Revised Site Plan - Planning and Zoning March 5, 2020 Passed 7-0

A Resolution of the City of Sunrise, Florida, approving a Revised Site Plan for a Community and Residential Facility located at 5100 - 5130 N. Nob Hill Road;

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providing for penalties for violations of the conditions of approval; providing for the term of this approval; and providing an effective date. City Manager Richard Salamon. Shannon Ley, Community Development Director.

12. Public Hearings

(A) Utility System 2020 Bonds - Authorizing Ordinance
C20025 Ordinance No. 653

Commission discussion and/or action re: Second Reading of an Ordinance of the City of Sunrise, Florida, Authorizing the issuance of the City's Utility System Revenue Refunding Bonds, Series 2020, in an Aggregate Principal Amount not to exceed \$97,500,000, to provide funds, together with other available moneys, to refund on a current basis, pursuant to a forward delivery transaction, the city's Outstanding Utility System Revenue Bonds, Federally Taxable Series 2010B (Build America Bonds-Direct Payment), previously issued by the City and to pay issuance costs; providing that such Series 2020 Bonds shall be issued as parity bonds pursuant to the provisions of Ordinance No. 696-X, as Supplemented and Amended, and shall be payable from the sources specified in said Ordinance; providing that, subject to the limitations herein contained, the terms of such Series 2020 Bonds shall be established or provided for and the Series 2020 Bonds shall be sold by Supplemental Resolution; authorizing the taking of other actions relating to the Series 2020 Bonds; providing for conflict; providing for severability; and providing an effective date. City Manager Richard Salamon. Kimberly A. Kisslan, City Attorney. (First Reading CCM 2/25/2020 Passed 4-0 Kerch Absent.)

MOTION A motion to approve Item 12A made by Deputy Mayor Scuotto was seconded by Commissioner Sofield.

Mayor Ryan opened a public hearing. No one came forward.

Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Douglas	Yea
Commissioner Sofield	Yea
Assistant Deputy Mayor Kerch	Yea
Deputy Mayor Scuotto	Yea
Mayor Ryan	Yea

(B) Special Election
C20044 Ordinance No. 655

Commission discussion and/or action re: Second Reading of an Ordinance of the City of Sunrise, Florida, calling a Special Municipal Election to fill the remainder of the term for City Commission Seat "D" to be held on November 3, 2020 to coincide with the General Municipal Election for City Commission Seats

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“A” and “B” and the “Mayor;” authorizing the City Clerk to proceed with all aspects of the Election Process; providing for conflict; providing for severability; and providing an effective date. City Manager Richard Salamon. Felicia M. Bravo, City Clerk. (First Reading CCM 3/10/2020 Passed 4-0 Douglas Absent.)

MOTION A motion to approve Item 12B made by Commissioner Sofield was seconded by Deputy Mayor Scuotto.

Mayor Ryan opened a public hearing. No one came forward.

Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Douglas	Yea
Commissioner Sofield	Yea
Assistant Deputy Mayor Kerch	Yea
Deputy Mayor Scuotto	Yea
Mayor Ryan	Yea

(C) Amendment
C20062

Commission discussion and/or action re: First Reading of an Ordinance of the City of Sunrise, Florida, amending Fiscal Year 2019/2020 Budget Ordinance No. 649; amending General Fund (001); providing for conflict; providing for severability; and providing an effective date. City Manager Richard Salamon. Wendy Dunbar, Finance and Administrative Services Director.

MOTION A motion to approve Item 12C made by Deputy Mayor Scuotto was seconded by Commissioner Sofield.

Mayor Ryan opened a public hearing. No one came forward.

Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Douglas	Yea
Commissioner Sofield	Yea
Assistant Deputy Mayor Kerch	Yea
Deputy Mayor Scuotto	Yea
Mayor Ryan	Yea

(D) Amendment
C20059

Commission discussion and/or action re: First Reading of an Ordinance of the City of Sunrise, Florida, amending Chapter 2 "Administration" Division 1 "Generally" by Amending Section 2-81 "Meetings and Other General Requirements;" regarding Meetings of City Advisory Boards; providing for conflict; providing for severability; providing for inclusion in the City Code; and providing an effective date. City Manager Richard Salamon. Kimberly A. Kisslan, City Attorney. Felicia M. Bravo, City Clerk.

MOTION A motion to approve Item 12D made by Deputy Mayor Scuotto was seconded by Commissioner Sofield.

Mayor Ryan opened a public hearing. No one came forward.

Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Douglas	Yea
Commissioner Sofield	Yea
Assistant Deputy Mayor Kerch	Yea
Deputy Mayor Scuotto	Yea
Mayor Ryan	Yea

13. Quasi-Judicial Hearing

None

14. City Clerk's Report

None

15. City Attorney's Report

None

16. Old Business

None

17. New Business

(A) Utility System Revenue Refunding Bonds
C20053 Resolution No. 20-29
ADDENDUM

A Resolution of the City of Sunrise, Florida, authorizing the Issuance and Sale of Utility System Revenue Refunding Bonds, Series 2020, in the aggregate principal amount of not to exceed \$97,500,000 for the purpose of providing funds, together with other legally available moneys, to refund the issuer's previously issued utility system revenue bonds, federally taxable series 2010B

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(Build America Bonds – Direct Payment), outstanding in the Aggregate Principal Amount of \$93,915,000, and to pay issuance costs; accepting the proposal of Bank of America, N.A., to enter into a forward delivery bond purchase agreement for the purchase of the Series 2020 Bonds; authorizing the City Manager, within the parameters set forth herein, to finalize the terms and provisions of said Series 2020 Bonds; appointing a paying agent and an escrow agent and approving any required paying agent agreement and escrow deposit agreement; authorizing the redemption of the series 2010B Bonds and the giving of notice thereof; establishing the need for and authorizing a negotiated sale of the Series 2020 Bonds and authorizing the execution and delivery of a forward delivery bond purchase agreement with Bank of America, N.A. in connection therewith; authorizing the execution and directing the authentication and delivery of said series 2020 Bonds; providing for the application of the proceeds of said Series 2020 Bonds; authorizing other required actions; providing for conflict; providing for severability; and providing an effective date. City Manager Richard Salamon. Kimberly A. Kisslan, City Attorney. City Manager Richard Salamon. Kimberly A. Kisslan, City Attorney. Wendy Dunbar, Finance and Administrative Services Director.

MOTION A motion to approve Item 17A made by Commissioner Sofield was seconded by Deputy Mayor Scuotto.

Mayor Ryan opened a public hearing. No one came forward.

Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Douglas	Yea
Commissioner Sofield	Yea
Assistant Deputy Mayor Kerch	Yea
Deputy Mayor Scuotto	Yea
Mayor Ryan	Yea

(B) Amendment
C20065
ADDENDUM #2

Commission discussion and/or action regarding proposed revision to Section 11 Declaration of Emergency Restrictions 20-03 which revises Section 11 of the City's Declaration of Emergency Restrictions 20-02. Commissioner Mark A. Douglas.

Mayor Ryan heard Items 17B and 17C together.

MOTION A motion to approve Item 17B made by Deputy Mayor Scuotto was seconded by Commissioner Sofield.

City Attorney Kimberly Kisslan stated there was a scrivener's error and asked for it to be corrected.

MOTION A motion to amend Item 17B made by Deputy Mayor Scuotto was seconded by Commissioner Sofield.

Roll Call:

Commissioner Douglas	Yea
Commissioner Sofield	Yea
Assistant Deputy Mayor Kerch	Yea
Deputy Mayor Scuotto	Yea
Mayor Ryan	Yea

Mayor Ryan asked for a roll call on Item 17B as amended one time.

Roll Call:

Commissioner Douglas	Yea
Commissioner Sofield	Yea
Assistant Deputy Mayor Kerch	Yea
Deputy Mayor Scuotto	Yea
Mayor Ryan	Yea

(C) Safer at Home
ADDENDUM #3

Commission discussion and/or action regarding implementing additional "Stay-At-Home" strategies and setting standards for essential businesses to enforce and comply with best practices through Declaration of Emergency Regulations. Mayor Michael J. Ryan

MOTION A motion to hear Item 17C made by Commissioner Sofield was seconded by Deputy Mayor Scuotto.

Mayor Ryan stated that many people were not staying at home. Coral Springs put together proposals that established best practices and an enforcement standard. It also addressed that people should not be traveling and visiting friends. The city managers would address it again in a call. They spoke with other cities and received support. He spoke with additional cities that supported the matter. Many people needed time to digest the changes. Broward County should put it forward, but everyone understood the County may not do it.

Commissioner Douglas advised could not make a decision on a measure that would shut down businesses after reviewing it for only 20 minutes. Another emergency meeting could be scheduled.

Mayor Ryan offered that authority could be delegated to the City Manager. Sunrise was not as nimble as other cities.

Commissioner Douglas did not want to delegate the authority to the City Manager. It was in some of the cities' code. Sunrise passed an ordinance and then dialed it back. Now the consideration was to strengthen it. It should be as clear as possible. When the City passed the first ordinance, some businesses wanted to be exempt. It could be a patchwork of exemptions if left to the City Manager. He used the County as an example. This needed to be coordinated uniformly. He thought it was unenforceable. He was concerned that people were subject to criminal arrest.

Assistant Deputy Mayor Kerch had issues with the ordinance as it existed.

Deputy Mayor Scuotto did not want to delegate authority to the City Manager. The situation was in constant flux. There was no consistency. The County did not make a decision. When it did, Sunrise went along. Now the other cities wanted to change it. It was frustrating.

Commissioner Sofield thought it was ridiculous that everything was changing so quickly. He was ready to turn it over to the City Manager. The City Commission was micromanaging the situation on an hourly basis. It needed to stop. He did not see anything in the order that everyone did not already know. Everyone was doing the best they could. The City Commission did not need to meet every other day. We may not agree, but it was uniform. By not being uniform, it was encouraging people to cross borders to do what they wanted.

Mayor Ryan explained that he trusted City Manager Richard Salamon and Fire Chief McNamara.

Commissioner Douglas replied that the City Commission needed to make these decisions.

Mayor Ryan responded that Coral Springs was trying to get consensus. It comes back to essential businesses are not all essential. The mayors were frustrated. Sunrise would have to emphasize to the businesses about limiting social contact.

Commissioner Sofield asked to have a resolution of support and send it to the County.

Mayor Ryan agreed. The regulations should be coming out of the County. After hearing the views of his colleagues, he determined that the power would remain with the City Commission by 3 to 2 support.

Assistant Deputy Mayor Kerch asked what the issue was regarding long lines. This was not something he saw. It did not make sense to have Sunrise businesses closed while other cities businesses were open. The ordinance had a lot of issues. Sunrise made a decision to follow the County. He wanted to see

what the County was doing. He would not act on this tonight. He wanted to make a correct decision. The City needed to contemplate what it was doing. He needed information.

Commissioner Douglas commented that stricter measures needed to be taken. He hoped that the energy was directed to getting a mass of cities to place pressure on the County. If the plan was not uniform, it made no sense. He disagreed with the punitive measures, but he thought the restrictions should come from the County. If a critical mass came together, they could get the County to act. Every level of government had duties, but all had to protect the health, safety and welfare of the citizens. The Governor would not take one step away from President Trump. President Trump was willing to sacrifice lives. This affected everyone. As much as he wanted to do something and he understood the mayor's concerns, individual cities could not make the decision. The City would stick with the County's measures. The City should put pressure on the County.

Mayor Ryan replied that Weston Mayor Daniel Stermer was trying to get stricter regulations passed.

Deputy Mayor Scuotto said that not every city manager and mayor was the as vigilant as Sunrise's. He wanted to see what the County was going to do. If all of the city managers agreed tomorrow, then there could be a meeting. If it was the bare essentials that needed to be open, then that was what it was.

Mayor Ryan described how the Safer at Home measure came to be, but it would be discussed again by the city managers.

Deputy Mayor Scuotto asked if daycare was going to be closed again.

Commissioner Douglas answered that Bertha Henry had the power delegated to her by the County and the state of Florida. In New York, people were encouraged to act. The President was signaling that he if people died, so be it. The national state of emergency could be lifted. This was one of the problems with unchecked capitalism. Some people put money before lives.

Mayor Ryan said Orange County issued a stay at home order. He agreed that the City should put pressure on the County Commission to act. He wanted the City Commission to have the information.

Deputy Mayor Scuotto did not want indecision. All of the suggestions were good, but uniformity was necessary.

Mayor Ryan believed that Coral Springs was trying to get cities' consensus and put pressure on the County.

Deputy Mayor Scuotto asked to wait until tomorrow's meeting.

Commissioner Sofield wanted this issue to be handled by the County and make them do it. All 31 cities needed to be on the same page.

Commissioner Douglas stated that the County should act. There had to be pressure. County Administrator Bertha Henry was being influenced by someone.

Deputy Mayor Scuotto believed that the County Commission supported her decisions.

Commissioner Douglas explained Bertha Henry had the power. The County Commission could not force her to act, because it was given to her by the County Charter.

Mayor Ryan stated that people with severe health issues should stay home.

Commissioner Douglas said the measure could not be enforced.

18. Adjournment

Seeing no further business, the meeting adjourned at 6:15 p.m.

Respectfully submitted by:

Felicia M. Bravo, City Clerk